

**BEFORE THE HON'BLE DISTRICT CONSUMER DISPUTES REDRESSAL
COMMISSION, GHAZIABAD (U.P.)**

CONSUMER COMPLAINT NO. _____ OF 2026

(Complaint under Section 35 of the Consumer Protection Act, 2019)

IN THE MATTER OF:

Mr. Vikas Gandhi

S/o Shri Surendra Gandhi, aged about 53 years,

R/o D-20, 1st Floor, Dayanand Nagar,

Ghaziabad, Uttar Pradesh – 201001

Mobile: 9911198000 | Email: 9amdeal@gmail.com

UIDAI NUMBER : 6318 2327 2793

...COMPLAINANT

VERSUS

ACKO General Insurance Limited

Through its Managing Director / Authorised Signatory

Regd. Office: 2nd Floor, 36/5 Hustle Hub One East,

Somasandrapalya, 27th Main Road, Sector 2, HSR Layout,

Bengaluru, Karnataka – 560102

Email: gro@acko.com | IRDAI Reg. No. 157

...OPPOSITE PARTY

**COMPLAINT UNDER SECTION 35 OF THE CONSUMER PROTECTION ACT,
2019**

MOST RESPECTFULLY SHOWETH:

This complaint arises from the wrongful repudiation by the Opposite Party of the Complainant's health insurance claim of Rs. 37,358/-. The Complainant was hospitalised in June 2025 for acute obstruction in passing urine, along with infection, and underwent an urgent surgery performed by a specialist Urologist. The tissue removed during the surgery was sent for biopsy, which confirmed a pre-malignant condition. The Opposite Party repudiated the claim on the ground of a waiting period, without examining the biopsy report, without obtaining any medical opinion, and without dealing with the exception written into its own policy clause. Each fact stated below is supported by a document filed along with this complaint.

PARTIES

1. That Complainant is a consumer within the meaning of Section 2(7) of the Consumer Protection Act, 2019, having purchased a health insurance policy from the Opposite Party for valuable consideration for his personal and family use.
2. That Opposite Party is a general insurance company registered with the Insurance Regulatory and Development Authority of India (Registration No. 157) and provides insurance services for consideration.

JURISDICTION AND LIMITATION

3. That Complainant resides at Ghaziabad and the entire hospitalisation and treatment took place at RS Maitri Health Care, J-278, Patel Nagar 1st, Ghaziabad, which is within the local limits of this Hon'ble Commission. This Hon'ble Commission, therefore, has territorial jurisdiction to entertain and try the present complaint under Section 34(2)(d) of the Act.
4. That claim amount, together with the compensation claimed, is within the pecuniary jurisdiction of this Hon'ble Commission, and the requisite court fee, if any, is being paid.
5. That claim was repudiated on 26.06.2025. The Complainant thereafter approached the grievance cell of the Opposite Party and the Insurance Ombudsman, Noida, whose Award was passed on 02.07.2026. The present complaint is filed within two years of the cause of action, as required under Section 69 of the Act. The forwarding letter of the Insurance Ombudsman dated 02.07.2026 (Annexure C-11, Annex-XIII-A) itself records:

“In the eventuality of your disagreeing with the enclosed award, you may, move a fresh application at any other forum/court that may be considered by you as appropriate.”

BRIEF FACTS

6. That material dates and events, each supported by the document noted against it, are as follows:

Date	Event	Supporting Document
04.11.2024	ACKO Personal Health Policy (Standard Plan, Family Floater) No. ASHP202400001607 issued after underwriting; Sum Insured Rs. 10,00,000; premium Rs. 31,065 p.a.; policy period 04.11.2024 to 03.11.2025.	Annexure C-1 (Policy Schedule); Annexure C-2 (Proposal Form)
Nov 2024 to Jun 2025	All premium instalments paid on time; policy continuously in force.	Annexure C-3
June 2025	Complainant develops acute urinary complaints, namely poor flow of urine with infection.	Annexure C-4
20.06.2025	Admitted to RS Maitri Health Care, Ghaziabad at 06:58 hrs; Circumcision and Meatoplasty performed the same day under spinal anaesthesia by Dr. Vaibhav Saxena, M.Ch. (Urology); IV fluids and IV antibiotics given; excised tissue sent for histopathology.	Annexure C-4
21.06.2025	Discharged in stable condition; total hospital expenses Rs. 37,358, paid by the Complainant.	Annexure C-4; Annexure C-5
21/24.06.2025	Reimbursement Claim No. 25062100350/1 lodged with all documents; representation sent.	Annexure C-6
25.06.2025	Claim rejected by "Update on Your Claim" email stating that the procedure "is not related to a malignancy", five days before the histopathology report came into existence; the GRO rejected the representation in the same terms.	Annexure C-7
26.06.2025	Claim repudiated by email citing only the general "Specific Illnesses" waiting-period clause, without naming any listed condition and without dealing with the exception contained in it.	Annexure C-8
30.06.2025	Histopathology Report (Max Lab, No. V-6630/25): gross "cauliflower like lesion 3.5 x 3 x 0.8 cm"; Impression: "Consistent with Lichen sclerosus (balanitis xerotica obliterans)".	Annexure C-9
Jul to Aug 2025	Appeals and grievances to the Opposite Party, all rejected without dealing with the medical evidence.	Annexure C-10 (colly.)
07.08.2025	Complaint filed before the Insurance Ombudsman, Noida (NOI-H-056-2526-0961).	Annexure C-11
24.06.2026	Personal hearing before the Ombudsman.	Annexure C-11
02.07.2026	Ombudsman Award IO/NOI/A/HI/0061/2026-2027: complaint dismissed, but medical necessity held undisputed and the Permanent Exclusion held inapplicable; liberty granted to approach any other forum.	Annexure C-11; Annex-XIII-A
12.07.2026	Treating Urologist issues Medical Certificate: surgery "was must" owing to inability to pass urine and UTI; biopsy confirmed BXO, "a pre-malignant condition"; risk of life-threatening infection and penile cancer if not treated.	Annexure C-12
14.07.2026	Grievance registered on the National Consumer Helpline (INGRAM) portal, Grievance No. 9719631 (in process).	Annexure C-10 (colly.)

Date	Event	Supporting Document
15.07.2026	Grievance Redressal Officer of the Opposite Party again relies on the "waiting period" ground of 26.06.2025, without adverting to the biopsy report, the treating doctor's certificate, or the Ombudsman's findings.	Annexure C-10 (colly.)

THE ILLNESS AND THE SURGERY

7. That in June 2025, more than seven months after the policy commenced, the Complainant developed acute obstruction in passing urine. The Discharge Summary of RS Maitri Health Care (Annexure C-4) records the following:

Diagnosis: "TIGHT PHIMOSIS WITH BALANITIS WITH MEATAL STENOSIS"

Brief history of presenting illness: "POOR FLOW OF URINE"

Procedure: "CIRCUMCISION + MEATOPLASTY DONE UNDER SA ON 20/06/2025"

Course during hospitalization: "IV FLUIDS AND IV ANTIBIOTICS"

8. That these entries, made by the hospital in its own contemporaneous record, show that the Complainant had, first, acute urinary obstruction; secondly, active infection, being balanitis with urinary tract infection, for which intravenous antibiotics were given; thirdly, surgery on the very day of admission, which is done only where surgery cannot be postponed; and fourthly, treatment by a qualified surgical team under anaesthesia in a hospital.

9. That Complainant was discharged on 21.06.2025 and paid the entire hospital expenses of Rs. 37,358/- from his own funds. He thereafter lodged Reimbursement Claim No. 25062100350/1 with the Opposite Party along with all supporting documents (Annexure C-6). The quantum of the claim has, at no stage, been disputed by the Opposite Party.

10. That tissue removed during the surgery was sent for histopathological examination. The Histopathology Report of Max Lab dated 30.06.2025, No. V-6630/25 (Annexure C-9), records in its Gross Description: "Externally shows cauliflower like lesion measures 3.5 x 3 x 0.8 cm."

The Impression of the same report records: “Consistent with Lichen sclerosis (balanitis xerotica obliterans).”

11. That biopsy thus confirmed Balanitis Xerotica Obliterans (BXO), also known as Lichen Sclerosus, which is a recognised pre-malignant condition of the penis. This is certified by the treating specialist referred to below, and is also supported by standard medical literature (Annexure C-13). The whole sequence of illness, surgery and diagnosis is therefore borne out by hospital and laboratory records, and not merely by the Complainant’s own statement.

12. That for the convenience of this Hon’ble Commission, the medical terms used in these documents mean, in ordinary language, the following. Phimosis is an abnormal tightening of the foreskin which prevents it from being drawn back and, in a severe case, obstructs the passing of urine. Balanitis is inflammation and infection of the glans and foreskin. Meatal stenosis is a narrowing of the urinary opening which further obstructs the flow of urine. Balanitis Xerotica Obliterans (BXO), also called Lichen Sclerosus, is a chronic scarring disease of the foreskin which is medically recognised as a pre-malignant condition, that is, a condition that can progress to cancer of the penis if it is not treated. None of these is a cosmetic complaint; each is a genuine illness recorded by the treating hospital, and together they explain why the surgery had to be done on the day of admission.

THE TREATING DOCTOR’S CERTIFICATE

13. That Complainant was treated and operated upon by Dr. Vaibhav Saxena, M.S. (BHU), M.Ch. Urology (AIIMS, New Delhi), U.P. Medical Council Reg. No. 47425. As appears from his letterhead and registration, he is the Senior Director of Urology, Uro-Oncology, Robotic Surgery and Renal Transplant at Yashoda Super Speciality Hospital, Kaushambi, and

Consultant Urologist at RS Maitri Health Care, Ghaziabad, and is the very surgeon who operated upon the Complainant and followed up the biopsy.

14. That said doctor has issued a Medical Certificate dated 12.07.2026 (Annexure C-12), which states:

“Mr. Vikas Gandhi, 54 yrs Male, R/o D-20, Dayanand Nagar, Ghaziabad was suffering from Phimosis with Balanitis with meatal stenosis & UTI. His surgery was must in view of unable to pass urine & UTI. His Preputial Biopsy came out to be (BXO) which is a pre-malignant condition & not any elective or cosmetic surgery. There is life threatening infection risk & risk of penile cancer if not treated...”

15. That certificate of the treating doctor establishes that the surgery was medically necessary and was not elective or cosmetic, that the biopsy confirmed a pre-malignant condition, and that without treatment there was a risk of life-threatening infection and of penile cancer. The opinion of the treating specialist, who himself examined and operated upon the Complainant, is the best medical evidence available in the matter. The Opposite Party has not, at the claim stage, at the grievance stage, or before the Ombudsman, produced any medical opinion to the contrary, nor referred the matter to any medical board.

16. That BXO, or genital Lichen Sclerosus, is also recognised in standard medical literature (Annexure C-13) as a pre-malignant condition associated with cancer of the penis. The Guidelines on Penile Cancer of the European Association of Urology classify Lichen sclerosis among pre-malignant penile lesions, and record that phimosis, which is the Complainant's recorded diagnosis, is strongly associated with invasive penile cancer. This literature

corroborates the certificate of the treating doctor and is placed on record in support of the complaint.

THE PROPOSAL FORM AND THE POLICY

17. That Proposal Form (Annexure C-2), on the basis of which the Opposite Party underwrote and accepted the risk, records the following answers given by the Complainant:

“Has anyone in this plan been diagnosed with a medical condition?” – “No medical conditions”. “Did anyone in this plan take any prescribed medicines in the past week?” – “No”. “Has anyone in this plan been advised to undergo or has ever undergone hospitalisation for any illness / surgery?” – “no”. “Does anyone in this plan have any other ongoing health issues or symptoms for which you are planning a doctor visit?” – “No”. “PED declared” – “Obesity”.

18. That the only condition declared was obesity. There was no previous medical condition, no ongoing symptom, no previous surgery and no previous hospitalisation. The Opposite Party accepted the proposal after underwriting and issued the policy, its Schedule (Annexure C-1) recording “Permanent disease exclusion: No exclusion.”

19. That Opposite Party has never alleged suppression of any material fact, has never invoked the pre-existing disease clause, and has never questioned the genuineness of the illness or of the treatment. Any suggestion that the disease existed before the policy commenced is thus ruled out by the insurer’s own record.

20. That Opposite Party has, in fact, renewed the policy as Policy No. ASHP202400001607R1 for the period 04.11.2025 to 03.11.2026 (sum insured Rs. 11,00,000 including inflation-protection bonus; premium Rs. 36,656.86; Annexure C-1 colly.). The renewal document records “First policy inception date: 04/11/2024” and “Existing user: Yes”. The Opposite Party

thus continues to accept the Complainant's premium and to treat the cover as continuous from 04.11.2024, even while refusing the only claim ever made under it.

THE REPUDIATION OF THE CLAIM

21. That repudiation email dated 26.06.2025 (Annexure C-8), so far as it gives reasons, states:

“After carefully reviewing your claim, we noticed that you have filed a claim for the expenses incurred for treatment of a condition falling under waiting period. Unfortunately, these costs are not a part of your insurance coverage. As a result, we are unable to approve your claim.”

The email is followed only by an extract of the general clause 4.1.2 (“Specific Illnesses”).

22. That a day earlier, by its “Update on Your Claim” email dated 25.06.2025 (Annexure C-7), the Opposite Party had cited the genitourinary entry and stated that “this procedure is not related to a malignancy”. This medical conclusion was recorded on 25.06.2025, that is, five days before the Histopathology Report dated 30.06.2025 even came into existence, and without reference to any medical opinion.

23. That repudiation is thus not a reasoned decision. In deciding the claim, the Opposite Party did not examine the biopsy report, did not consider the pre-malignant character of BXO, did not consider the treating doctor's opinion, did not obtain any independent medical opinion, did not refer the matter to a medical board, and did not deal with the exception “unless necessitated by malignancy” contained in the very clause it relied upon. It merely reproduced the words of a waiting-period clause without applying that clause to the medical facts of the case.

24. That the same unreasoned ground was repeated at every stage. The rejection email of 25.06.2025, the repudiation of 26.06.2025 and the reply of the Grievance Redressal Officer

dated 15.07.2026 are, in substance, identical. None of them names any listed condition in the Schedule, refers to the Histopathology Report, refers to the treating doctor's certificate, or deals with the findings of the Ombudsman. Repetition of the same unreasoned ground at three successive stages is, by itself, a deficiency in service.

PROCEEDINGS BEFORE THE INSURANCE OMBUDSMAN

25. That Insurance Ombudsman, Noida, by Award No. IO/NOI/A/HI/0061/2026-2027 dated 02.07.2026 (Annexure C-11), dismissed the complaint, but recorded the following findings:

Para 13: "It is noted that it is not disputed that the procedure was medically necessary and it was undertaken to address the complaint/problem of poor flow of urine, and it has also been conveyed by complainant that he had serious infection."

Para 14: "In this sense, the procedure involving circumcision + meatoplasty would not be covered under the Permanent Exclusion clause 4.2.3 of the policy as it has been necessitated by illness and forming part of treatment."

26. That in view of these findings, the questions of medical necessity, genuineness of the treatment, continuance of the policy, and inapplicability of the Permanent Exclusion clause are no longer in dispute. The only question that now remains is whether a surgery performed for a biopsy-confirmed pre-malignant condition falls within the exception "unless necessitated by malignancy".

27. That Ombudsman decided this question against the Complainant only because, at the hearing, there was no post-operative medical paper certifying the malignant potential of BXO. That paper is now on record in the form of the treating doctor's certificate dated 12.07.2026 (Annexure C-12), read with the medical literature (Annexure C-13). The Award was passed in

the summary procedure under the Insurance Ombudsman Rules, 2017, and does not bar this complaint; its forwarding letter itself grants liberty to approach any other forum.

THE POLICY CLAUSE AND ITS EXCEPTION

28. That Policy Schedule (Annexure C-1) provides: “Specific illness – 2 years waiting period on specific illness – NOTE: Refer Annexure for the complete disease list”. The only entry of that Annexure relied upon by the Opposite Party reads: “Any Surgery of the genitourinary system unless necessitated by malignancy.”

29. That this clause is not an absolute exclusion. The insurer itself has kept out of the waiting period any genitourinary surgery that is necessitated by malignancy. On the admitted facts, namely a suspicious “cauliflower like lesion”, a biopsy-confirmed pre-malignant condition, and the treating doctor’s certificate that BXO is a pre-malignant condition carrying a risk of penile cancer, the surgery undergone by the Complainant is covered by this exception.

30. That the policy nowhere defines the words “necessitated by malignancy”, nowhere excludes pre-malignant conditions from the exception, nowhere requires an established cancer or a histologically proven invasive carcinoma, and nowhere states that preventive surgery for a pre-cancerous condition is excluded. The insurer’s reading, that the exception applies only after cancer has fully developed, is not the only possible meaning, and it defeats the very purpose of the exception, because a surgery that prevents cancer ought not to be made to wait out two years when any delay is medically dangerous.

31. That Complainant does not claim to have had an established cancer. His case, certified by the treating doctor and supported by medical literature, is that BXO is a recognised pre-malignant condition carrying a known risk of progressing to penile cancer, and that the surgery was undertaken because of that risk, and not for any cosmetic or elective reason.

32. That in the alternative and without prejudice to the above, if this Hon'ble Commission were to find that the words "necessitated by malignancy" are capable of two reasonable meanings, then, the clause having been drafted solely by the insurer, the doubt must be resolved in favour of the insured, on the settled rule of contra proferentem. This is submitted only in the alternative; the Complainant's main case rests on the medical evidence itself.

GROUND

33. That the acts and omissions of the Opposite Party set out above amount to deficiency in service under Section 2(11) and to unfair trade practice under Section 2(47) of the Consumer Protection Act, 2019, on the following, among other, grounds:

- (i) Because the Opposite Party repudiated a genuine, medically necessary and fully documented claim without examining the biopsy report and without obtaining any medical opinion of its own at any stage.
- (ii) Because the Opposite Party failed to apply the exception "unless necessitated by malignancy" contained in the very clause on which it relied, and did not even disclose the specific sub-clause said to bar the claim.
- (iii) Because the Opposite Party recorded, on 25.06.2025, a medical conclusion that the procedure was "not related to a malignancy", five days before the histopathology report came into existence.
- (iv) Because the repudiation is a non-speaking order which merely reproduces the words of a waiting-period clause without applying it to the medical facts, and the same unreasoned ground was repeated at the claim, grievance and post-Award stages.

(v) Because the findings of the Insurance Ombudsman that the surgery was medically necessary and that the Permanent Exclusion is inapplicable have not been challenged, and the only gap noted by the Ombudsman has since been filled by the treating doctor's certificate and the medical literature now on record.

(vi) Because the Opposite Party has continued to accept the Complainant's premium and has renewed the policy, while refusing the only claim made under it.

34. That wrongful repudiation has kept the Complainant out of his money since 26.06.2025 and has compelled him to pursue the matter through the grievance cell, the Insurance Ombudsman and now this Hon'ble Commission, over a period of more than a year, thereby causing him financial loss, mental agony and harassment, for which he is entitled to compensation, interest and costs.

CAUSE OF ACTION

35. That cause of action arose on 20.06.2025 and 21.06.2025 when the Complainant was hospitalised and operated upon, on 25.06.2025 and 26.06.2025 when the claim was rejected and repudiated, on the subsequent dates when the grievances were rejected, and finally on 02.07.2026 when the Insurance Ombudsman passed the Award with liberty to approach any other forum. The cause of action is a continuing one and has arisen within the jurisdiction of this Hon'ble Commission.

PRAYER

36. That it is, therefore, most respectfully prayed that this Hon'ble Commission may be pleased to:

(a) direct the Opposite Party to pay to the Complainant Rs. 37,358/- (Rupees Thirty-Seven Thousand Three Hundred Fifty-Eight only), being the admissible claim amount under Claim No. 25062100350/1;

(b) award interest on the said amount at the rate of 12% per annum, or at such rate as this Hon'ble Commission may deem fit, from 26.06.2025 till the date of realisation;

(c) award compensation of Rs. 1,00,000/-, or such amount as this Hon'ble Commission may deem fit, for the mental agony and harassment caused to the Complainant by the wrongful repudiation and the prolonged proceedings;

(d) award Rs. 25,000/- towards the cost of the present proceedings; and

(e) pass such other or further order as this Hon'ble Commission may deem fit and proper in the facts and circumstances of the case.

AND FOR THIS ACT OF KINDNESS, THE COMPLAINANT SHALL EVER PRAY.

Place: Ghaziabad

Date: ____ July 2026

COMPLAINANT
(Vikas Gandhi)

VERIFICATION

I, Vikas Gandhi, the Complainant above-named, do hereby verify that the contents of the above complaint are true and correct to my knowledge and belief, based on the documents annexed with the complaint, and that nothing material has been concealed therefrom.

Verified at Ghaziabad on this ____ day of July, 2026.

COMPLAINANT
(Vikas Gandhi)